

CUI
JUSTIFICATION FOR OTHER THAN FULL AND OPEN COMPETITION
SOLICITATION SPE7L125Q0777

[X] ORIGINAL

[] ADDENDUM (attach copy of original J&A for add-ons or revisions)

1. The Defense Logistics Agency, DLA Land and Maritime, is the contracting activity.
2. The action being approved is the acquisition of supplies on other than a full and open competition basis.
This Procurement will follow FAR Part 13.5 procedures.
3. This is a firm-fixed price contract for supplies. The supplies required to meet the using activity's needs are described as follows:

BRIEF DESCRIPTION	NSN/P/N	QUANTITY	EST. VALUE	AMSC
PARTS KIT, HYDRAULIC JACK	4910-016281473	137 + 100% OPTIONS		3D

Identify end item, weapon system, or class of item: WSIC: N WSDC: BLANK END ITEM: Not specific to end item

ESTIMATED BASE VALUE: \$

ESTIMATED TOTAL VALUE (BASE + OPTIONS): \$

MAXIMUM CONTRACT VALUE: \$

4. The statutory authority permitting other than full and open competition is:
[X] 10 U.S.C. 3204(a)(1) - Available from only one or a limited number of sources.
5. If restricted to the only source(s) of supply, include source(s) and CAGE code:
 - A. Sanitz Enterprises, Inc Cage: 57AD8
 - B. Sanitz Enterprises, Inc (CAGE 57AD8) is uniquely qualified because it is the only known source with the data or rights necessary to manufacture this item.

The use of the authority cited below:

[X] AMC 3. Acquire, for the second or subsequent time, directly from the manufacturer.

The use of the authority cited is based on:

[X] *AMSC D*. The data needed to acquire this part competitively is not physically available, it cannot be obtained economically, nor is it possible to draft adequate specifications or any other adequate, economical description of the material for a competitive solicitation. AMCS 3, 4, or 5 are valid.

Controlled by: DLA Land and Maritime
Controlled by: FLSC
CUI Category: PROCURE/SSI
Distribution/Dissemination Control: FED ONLY
POC:

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Product specialist, [REDACTED], certified the technical certification on 12/17/2024:

The AMC/AMSC code is 3/D. DLA does not possess adequate data, lacks rights to data, and/or has no record of an alternate Design Control Activity approved source. The data presently available reflects the minimum needs of the Government. There is no outstanding DLA Form 339 request for additional sources

6. Efforts to ensure that offers are solicited from as many sources as practicable are:

[X] The acquisition will be synopsisized for one day prior to the solicitation opening on DIBBS. The solicitation will be posted on DIBBS for 10 Days.

7. I hereby determine that the anticipated cost to the Government will be fair and reasonable.

This PR is a definite quantity contract, for a base quantity of 137 KT + 100% options. A price analysis will be conducted utilizing historical pricing (1 previous contract, multiple SAT buys. see attachment), the Producer Price Index (PPI), and learning curve analysis. Certified cost or pricing data requirement is exempt for this procurement as it is being procured under FAR Part 13.5 for simplified procedures for certain commercial items. Commercial items do not require certified cost and pricing. Offerors may be requested to submit information other than cost or pricing data for determining price reasonableness. Based on the above techniques, the Contracting Officer anticipates that the cost to the Government will be fair and reasonable for this procurement.

8. Market Research/Efforts to Obtain Competition:

Sources Sought was published 12/16/2024, for 5 business days, no response was received.

Market Survey [10 U.S.C. 3204(e)(2)(D)]:

[X] A market survey was conducted 12/16/24 by emailing vendors the market survey questionnaire.

Total number of vendors contacted: 3.

Names of vendors contacted and responding:

- Sanitz Enterprises Inc. (57AD8)
 - Responded 12-23-24 and provided a market survey.
- R&M Government Services Inc. (6FN58)
 - Responded 12-23-24 and provided a market survey.
- Kampi Components Co. Inc. (7Z016)
 - Responded 12-17-24 and provided a market survey.

Summary of information received:

- Business size: All 3 companies stated on the market survey's that they were small businesses, although Kampi Components Co. Inc. is not listed as a small business for NAICS 334419 on SBA. All 3 market surveys also stated there were no prior sales history of commercial off the shelf sales.

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- R&M government services (6FN58) attached to their reply of the market survey the Sanitz Enterprises catalog which included the pricing. Sanitz Enterprises (57AD8) also attached their catalog to their reply with the market survey. Kampi Components (7Z016) did not send the catalog in their reply.
- Manufacturer or dealer: Sanitz Enterprises Inc. (57AD8) is the manufacturer, whereas the other 2 companies stated they are dealers.
- Commerciality: All 3 companies stated that the item was not commercial off the shelf but it was a commercial item, as verified by the provided catalogs.

- [REDACTED]
- [REDACTED]
- [REDACTED]

Information received regarding the commerciality of the item(s): Commercial Item Database (CID) was reviewed by the Cage & National Stock Number (NSN) with no results returned in the database. Sanitz Enterprises Inc, Kampi Components, and R&M Government Services indicated the item is commercially available. Sanitz Enterprises and R&M Government Services provided commercial catalogs showing commercial pricing and availability of the item being procured (SEE ATTACHED). Contract specialist also found an extensive catalog of similar items from the approved source that are available for purchase on GSA (See attached). The KO reviewed the documents and market research and determined the item to be commercial of a type. **The contracting officer determines this item to be commercial of a type.**

9. Additional facts supporting other than full and open competition are:

- Based upon the attached technical certification, technical data is not available and cannot be developed to permit full and open competition. The data presently available reflects the minimum needs of the Government.
- As noted in Section 5, the product specialist supplied a technical certification on 12-17-24, which included a memo of record (MFR)- Justification for restricting competition, indicating that the AMC/AMSC code of "D" had been reviewed.

10. A listing of sources, if any, indicating an interest in the acquisition is:

- R&M Government Services Inc (6FN58)
- Kampi Components Co. Inc. (7Z016)
- Sanitz Enterprises (57AD8)

11. The following actions are being taken to identify additional sources:

[X] Solicitation contains DLA Procurement Note, L04 Offers for Part Numbered Items

[X] Solicitation contains DLA Procurement Note, M06 Evaluation of Offers for Part Numbered Items

[X] Other: Sources sought notice was posted on SAM.gov. No responses received.

12. DFARS PGI (Procedures, Guidance and Information) 206.303 and 206.304 state that justifications citing the authority at FAR 6.302-1 to permit the use of other than full and open competition shall include a copy of a previous justification (SEE ATTACHED).

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I hereby certify that the information contained in this justification is accurate and complete to the best of my knowledge and belief. If not exceeding \$750,000, this signature serves as the approval.

TUBBS.JOHN.D.1076026684
Digitally signed by
TUBBS.JOHN.D.1076026684
Date: 2025.02.19 10:32:14 -05'00'

Contracting Officer

Date

APPROVAL/CERTIFICATION

I have reviewed and approve this justification:

WIEBUSCH.JAMIE.1251897324
Digitally signed by
WIEBUSCH.JAMIE.1251897324
Date: 2025.03.24 14:22:37 -04'00'

Competition Advocate Signature

Date

APPROVAL REQUIREMENTS

☒ Up to \$750,000	Contracting Officer
☒ \$750,000 to \$15,000,000	Competition Advocate

Attachment(s):

- MFR Tech Data Sheet for Limited Sources
- EBS PO History
- Previous J&A
- Market Surveys
- Commerciality Catalogs